

necessary on today's calendar.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

CASE NUMBER: 23CV-0203171

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff Hauva Ward moves for an order naming her as successor in interest to her late husband, Richard Ward's claims in this action pursuant to CCP 377.31. The motion is properly noticed and unopposed.

Code of Civil Procedure 377.30 et seq. provides that a cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.

The Court finds that the causes of action alleged in this matter survive Decedent's death within the meaning of Code of Civil Procedure section 377.20, and that the proposed successor has submitted a declaration satisfying the requirements of Code of Civil Procedure section 377.32, including a certified copy of Decedent's death certificate.

The motion to substitute Hauva Ward as successor in interest for Decedent Richard Ward is **GRANTED**. Plaintiff is granted leave to file an amended complaint reflecting the substitution within 20 days of today's hearing. A proposed order has been lodged and will be executed.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

This matter is on calendar for hearing on Defendant Target Corporation's Motion to Strike. On the Court's own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are necessary on today's calendar.

9:00 a.m. Review Hearings

BIANCHIN VS. ARIK, MD, ET AL.

CASE NUMBER: 25CV-0208843

This matter is on calendar for status and trial setting. The matter is now at issue and ready to be set for trial. However, it is unclear whether Defendants Dignity Community Care and Foundation Physician Medical Group received notice of today's hearing. The proof of service of notice of hearing on file does not include those two Defendants and their Answer was filed just a week ago. To ensure all parties have sufficient notice, the Court will continue today's review hearing to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for trial setting. Plaintiff is ordered to give notice to all parties and to file a proof of service. No appearances are necessary today.

LOZANO VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210630

This matter is on calendar for review regarding status of the case. Defendant County of Shasta has filed a Demurrer which is set for hearing on September 28, 2026. Today's review hearing is therefore continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 64** for review

regarding status of the case. No appearances are necessary today.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

This matter is on calendar for review regarding status of the case. On today's 8:30 a.m. calendar, the Court intends to sustain the City of Redding's Demurrer without leave to amend. This leaves Defendants California Towing and Transport and County of Shasta, both of which have filed an Answer. The parties should appear today prepared to discuss trial setting.

LUKE PEARSON CONSTRUCTION, LLC VS. BEUTEL

CASE NUMBER: 24CV-0204490

This matter is on calendar for status and trial setting. The matter was filed March 11, 2024 and is exempt from plan designation. The Court intends to set a trial date today that falls within the next six months. No party has posted jury fees so the right to a jury trial is waived. The parties are ordered to appear today with available trial dates.

MCCLOSKEY VS. MORENO-MUNGUIA

CASE NUMBER: 25CV-0208928

This matter is on calendar for review regarding status of default documents. Plaintiff's request for clerk's judgment filed on August 24, 2026 was denied, because the requested judgment included general and special damages, which require judicial determination and evidentiary support. The matter must be submitted as a Request for Entry of Default and Court Judgment. Today's review hearing is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 64** for review regarding status of default judgment. No appearances are necessary on today's calendar.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

This matter is on calendar for review regarding status of appraisal and partition by sale. A status statement has been filed which appears to indicate that Plaintiff intends to complete the sale of the subject property without obtaining an appraisal, in violation of the Court's March 30, 2026 Interlocutory Judgment (§ 8). If Plaintiff wants to proceed without an appraisal, appropriate leave must be sought pursuant to the procedures set forth in CCP 874.316. For example, pursuant to an evidentiary hearing wherein the court determines the fair market value. CCP 874.316(c). Plaintiff has presented no authority permitting them to "complete the sale of the subject property...which will establish the fair market value in lieu of an appraisal." An appearance is necessary on today's calendar to discuss the status of the case.

VELOCITY INVESTMENTS, LLC VS. VILLARREAL

CASE NUMBER: 25CVG-02666

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on February 2, 2026 indicating the matter would be dismissed no later than October 21, 2027. The matter is continued to **Monday, November 8, 2027 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.